

use explicitly and store it only for as long as it is required. Citizens and Internet users will have the final say on how and for what purpose their personal data can be used. They will also have the right to withdraw consent. There will be the option of right to be forgotten, subject to certain conditions.

Some of the committee's recommendations have raised concerns among interested parties. These include the move to restrict cross-border flow of personal data, mandating storing critical personal data within the country and criminal prosecution along with stiff penalties against those violating data privacy rules. Also, the draft grants the government the discretion to identify what critical personal data is.

The report suggests amendments to the Aadhaar Act from a data protection perspective to deal with enforcement action and individual remedies. The draft bill is to be tabled in the Parliament after holding consultations with different ministries, industry

representatives and the public, and obtaining approval from the Cabinet.

Even as India sees impressive growth in smart Internet users and the e-commerce market, it is Big Data companies like Google, Amazon and Facebook that have more control over the country's digital ecosystem. It would be desirable to hammer in the principle that, while business and technology are global, data is fundamentally local.

So far, Amazon is meeting the regulatory requirements under the licence granted by the RBI to its wallet service called Amazon Pay. This is by virtue of compliance with local laws and applicable regulations. Amazon India shares users' payments data with Indian government authorities and

enforceable agencies, when required, according to its privacy policy listed on the company platform. This is done for the purposes of verification of identity or for prevention, detection, investigation including cyber incidents, prosecution and punishment of offences. This includes personal information as well as sensitive data.

This is in contrast to the practice followed by Amazon in the US where, while disclosing user data to the government, the company also publishes a transparency report, which includes the number of government requests it has received, how many of these were answered fully or partially, along with queries it refused to answer legally. **END** 🐧

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